



IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 6TH DAY OF JANUARY, 2026

PRESENT

THE HON'BLE MR. VIBHU BAKHRU, CHIEF JUSTICE

AND

THE HON'BLE MR. JUSTICE C.M. POONACHA

CIVIL CONTEMPT PETITION NO. 1185 OF 2025

BETWEEN:

1. SMT. MAHALAKSHMI K.M.
W/O MANJUNATHA H.L.
D/O MAHIMA RANGAIAH
AGED ABOUT 40 YEARS
R/AT NO.13, 2ND CROSS ROAD
GAYATHRI AGRAHARA
BRAMHANARA LAYOUT
JAKKASANDRA, NELAMANGALA
BENGALURU RURAL DISTRICT - 562 123

...COMPLAINANT

(BY SRI G. KRISHNAMURHTY, SENIOR ADVOCATE A/W
SRI SUNDARESH G., ADVOCATE)

AND:

1. THE STATE OF KARNATAKA
REPRESENTED BY ITS PRINCIPAL SECRETARY
DEPARTMENT OF RURAL DEVELOPMENT
AND PANCHAYATH RAJ
VIDHANA SOUDHA
BENGALURU - 560 001.

...PRO FORMA RESPONDENT

2. SMT. SUNANDAMMA
W/O MANJUNATH
THE PRESIDENT/CHIEF EXECUTIVE OFFICE AND
DISCIPLINARY AUTHORITY

Digitally signed
by PRABHAKAR
SWETHA
KRISHNAN

Location: High
Court of
Karnataka



KULUVANAHALLI GRAMA PANCHAYATH
NELAMANGALA TALUK - 562 123

3. SRI MOHAN KUMAR S.S.
S/O P. SHIVANNA
THE PANCHAYATH
DEVELOPMENT OFFICER
KULUVANAHALLI GRAM PANCHAYATH
NELAMANGALA TALUK - 562 123
4. SRI DHANANJAYA. M
S/O LATE MALLAIAH M.G.
THE SECRETARY
KULUVANAHALLI GRAMA PANCHAYATH
NELAMANGALA TALUK - 562 123
5. SMT. BINDHU
THE EXECUTIVE OFFICER
NELAMANGALA TALUK
NELAMANGALA - 562 123
6. DR. ANURADHA K.N.
THE CHIEF EXECUTIVE OFFICER
BENGALURU RURAL
ZILLA PANCHAYATH
BEERASANDRA
KUNDANA HOBLI
DEVANAHALLI TALUK - 562 110

...ACCUSED

(BY SRI S.H. RAGHAVENDRA, AGA FOR R-1,
SRI B.O. ANIL KUMAR, ADVOCATE FOR ACCUSED No.2 TO 4,
SRI M.S. PRAKASH, ADVOCATE FOR ACCUSED No.5,
SRI M.S. DEVARAJA, ADVOCATE FOR ACCUSED No.6)

THIS CCC IS FILED UNDER SECTIONS 11 AND 12 OF
THE CONTEMPT OF COURTS ACT, 1971, PRAYING TO
PUNISH THE ACCUSED FOR WILLFUL DISOBEDIENCE OF
THE FINAL ORDER DATED 08.11.2024 PASSED BY THIS
HON'BLE COURT IN W.P. NO.22260/2024 (S-RES).

THIS PETITION, COMING ON FOR ORDERS, THIS DAY,
ORDER WAS MADE THEREIN AS UNDER:



CORAM: HON'BLE MR. VIBHU BAKHRU, CHIEF JUSTICE
and
HON'BLE MR. JUSTICE C.M. POONACHA

ORAL ORDER

(PER: HON'BLE MR. VIBHU BAKHRU, CHIEF JUSTICE)

1. The complainant has filed the present complaint alleging wilful disobedience of the order dated 08.11.2024 passed by the learned Single Judge of this Court in W.P.No.22260/2024 (S-RES).
2. The operative part of the order indicates that the undertaking furnished by the accused for disposing of the enquiry proceedings was taken note of whereby, it was stated that the enquiry proceedings against the complainant would be disposed of within a period of four weeks. Further, the Court had also directed that if the enquiry is not completed within a period of four weeks, the respondent-authority shall re-consider the order of suspension.
3. The learned counsel for accused No.6 has filed an affidavit of compliance stating that accused No.4-Kuluvanahalli Gram Panchayat has extended the period of suspension in terms of the order dated 09.12.2024. Copy of the order has also been placed on record.



4. The learned counsel for the complainant submits that the interpretation in the said order and the two other documents on record, militate against the fact that any such order has been passed. In this regard, the learned counsel referred to the letter dated 31.12.2024 sent by the Panchayat Development Officer, Kuluvanahalli Gram Panchayat to the Chief Executive Officer, Bengaluru Rural District Panchayat seeking guidance in the matter. The subject matter of the said letter reads as, "regarding the disciplinary action against Smt. Mahalakshmi K.M, Clerk cum Computer Operator, Kuluvanahalli Village Panchayat, requesting for appropriate direction and clear order to continue the suspension". He submits that since there is a request to continue suspension, the said letter must be read as a request for passing an order to continue the suspension, which would not be necessary if the order dated 09.12.2024 extending the suspension till completion of the enquiry proceedings was, in fact, passed.

5. We find no merit in the said contention.

6. A plain reading of the said letter indicates that the Panchayat Development Officer had requested for guidance regarding further



proceedings considering the report that the complainant (Smt.Mahalakshmi, K. M), had not appeared in the enquiry proceedings on 07.12.2024 and 18.12.2024 and an undertaking had been given to complete the enquiry proceedings within a period of four weeks. Insofar as conduct of enquiry is concerned, documents filed on record indicate that the report dated 04.10.2025 was submitted and a resolution for dismissal of the complainant was passed on 30.10.2025.

7. In view of the above, we are unable to accept that any proceedings for wilful disobedience of the orders as complained of are required to be initiated.

8. The complaint is accordingly closed. We, however, clarify that this order will not preclude the complainant from availing any substantive remedy, if aggrieved by the dismissal order.

**Sd/-
(VIBHU BAKHRU)
CHIEF JUSTICE**

**Sd/-
(C.M. POONACHA)
JUDGE**